

Court No. - 39

Case :- WRIT - C No. - 51181 of 2014

Petitioner :- Veerendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vijay Singh Sengar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard Sri Vijay Singh Sengar, learned counsel for the petitioner, learned Standing Counsel for the respondent nos.1, 3 and 4 and Sri Kamal Kesarwani, holding brief of Sri Baleshwar Chaturvedi, appearing for the respondent no.2.

Petitioner by means of the present writ petition has sought relief for quashing of the recovery certificate dated 2.9.2014 essentially on the ground that the petitioner has been denied opportunity before determination of the amount, which is being realized from the petitioner.

Sri Kamal Kesarwani, appearing for the respondent no.2 on the basis of instructions states that a provisional assessment has been issued to the petitioner on 29.11.2013. However, there is no document to show that this provisional assessment was actually served upon the petitioner. On the basis of instructions, it is alleged that a demand notice alone had been served by registered post but no such postal receipt in respect of the provisional assessment is on record.

In this view of the matter, this Court finds that the provisional assessment notice has not been served upon the petitioner and consequently, the right of the petitioner to object the provisional assessment has been denied.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In view of the fact that the instructions do not contain any positive reply with regard to method of service, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005 to give reply and object to the provisional assessment.

The writ petition is allowed. The impugned recovery certificate dated 2.9.2014 and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar** (supra).

Order Date :- 22.9.2014

Anil